

TERMS AND CONDITIONS FOR DOMESTIC EDUCATIONAL TRAVEL PROGRAMMES

These Terms and Conditions ("**Terms**") govern the enrolment and participation of students in domestic educational tours, excursions, camps, industrial visits, leadership programmes, educational experiences and other travel programmes ("**Programme(s)**") organised by **The Modern Classroom** ("**Company**", "we", "our" or "us").

As the Participant is a minor, these Terms are accepted by the Parent/Guardian on the Participant's behalf. By proceeding with the payment of the Programme Fee through the Company's website or authorised payment gateway, the Parent/Guardian confirms that he/she has read, understood and agreed to be legally bound by these Terms.

1. DEFINITIONS

Unless the context otherwise requires:

- A. "**Participant**" means the student enrolled in the Programme.
- B. "**Parent/Guardian**" means the parent or legal guardian who completes the registration process, accepts these Terms and undertakes all obligations on behalf of the Participant.
- C. "**Programme**" means any domestic educational tour, excursion, camp, industrial visit, leadership programme, educational experience or any other travel activity organised or facilitated by the Company within India.
- D. "**Programme Fee**" means the amount payable towards the Participant's enrolment in the Programme.

2. ACCEPTANCE OF TERMS

- A. These Terms constitute a legally binding agreement between the Company and the Parent/Guardian in relation to the Participant's enrolment and participation in the Programme.
- B. The Parent/Guardian represents and warrants that he/she is the lawful parent or legal guardian of the Participant and is duly authorised to accept these Terms and undertake all obligations on behalf of the Participant.

- C. The Parent/Guardian acknowledges that acceptance of these Terms and payment of the Programme Fee creates a binding contractual relationship with the Company.
- D. The Parent/Guardian shall be responsible for ensuring the Participant's compliance with these Terms and shall remain liable for the Participant's acts, omissions and conduct during the Programme.

3. REGISTRATION AND ELIGIBILITY

- A. Participation in the Programme shall be subject to fulfilment of the eligibility criteria, submission of all documents and completion of the registration process prescribed by the Company.
- B. The Parent/Guardian shall ensure that all information, declarations, permissions and documents submitted to the Company are true, complete and accurate and shall promptly notify the Company of any change therein.
- C. The Company reserves the right to reject or cancel the Participant's enrolment where any information or document is found to be false, misleading or incomplete.

4. EFFECT OF PAYMENT, CANCELLATION AND REFUNDS

- A. Upon confirmation of the Participant's enrolment, the Company undertakes to make payments towards travel arrangements and incurs commitments and costs towards transportation, accommodation, meals and other services, if any, required for the Programme.
- B. Any request for cancellation shall be made in writing and may be subject to deductions towards non-refundable bookings and all costs incurred or committed by the Company up to the date of cancellation.
- C. No refund shall be payable in respect of unused services, voluntary withdrawal after commencement of the Programme, failure to report at the designated departure point, late arrival, early departure or removal of the Participant from the Programme due to misconduct or breach of these Terms.
- D. The Company reserves the right to recover any increase in the cost of transportation, accommodation, government taxes or levies,

or any other operational costs arising prior to the commencement of the Programme due to circumstances beyond its reasonable control. The Parent/Guardian shall be liable to pay such additional amount as may be communicated by the Company, failing which the Company may cancel the Participant's enrolment without any liability.

5. TRAVEL ARRANGEMENTS

- A. The itinerary, travel schedule, mode of transport, accommodation, meals and activities are indicative and may be modified by the Company where reasonably necessary due to operational, safety or logistical requirements.
- B. The Company reserves the right to substitute transportation providers, accommodation, venues or activities with suitable alternatives without materially affecting the overall purpose of the Programme.
- C. The Parent/Guardian shall ensure that the Participant reports at the designated departure point on the date and time communicated by the Company. The Company shall not be responsible for any consequences arising from the Participant's failure to report as instructed.

6. THIRD-PARTY SERVICE PROVIDERS

- A. The Company may engage independent transportation providers, accommodation providers, restaurants, educational institutions, local guides and other third-party service providers for the purposes of the Programme. While the Company exercises reasonable care in selecting such service providers, it shall not be liable for any act, omission, delay, cancellation, deficiency of service or default on their part.
- B. The Participant and the Parent/Guardian shall comply with all reasonable rules, policies and instructions applicable to such third-party service providers during the Programme.

7. PARENT/GUARDIAN AND PARTICIPANT OBLIGATIONS

- A. The Parent/Guardian shall ensure that the Participant complies with these Terms and all instructions issued by the Company, tour

leaders, accommodation providers, transportation providers and other authorised representatives throughout the Programme.

- B. The Parent/Guardian shall ensure that the Participant maintains proper discipline, behaves responsibly and respectfully, and does not engage in any act that is unlawful, unsafe, disruptive or likely to cause injury, damage or inconvenience to any person or property.
- C. The Parent/Guardian shall ensure that the Participant complies with all applicable laws, rules and regulations of the places visited during the Programme.
- D. The Parent/Guardian shall be solely responsible for ensuring that the Participant carries all personal belongings, prescribed medicines, identity documents and other essential items required for the Programme.
- E. The Parent/Guardian shall remain responsible for any loss, damage, expense or liability arising from the Participant's misconduct, negligence or breach of these Terms.

8. MEDICAL FITNESS AND EMERGENCIES

- A. The Parent/Guardian represents and warrants that the Participant is medically fit to participate in the Programme and that all relevant medical conditions, allergies, medications, dietary restrictions and special needs have been fully disclosed to the Company.
- B. The Parent/Guardian authorises the Company to arrange emergency medical assistance for the Participant whenever reasonably required. All medical, hospitalisation, transportation and related expenses shall be borne solely by the Parent/Guardian.
- C. The Company reserves the right to restrict, suspend or discontinue the Participant's participation, or arrange for the Participant's return, where the Participant is found medically unfit, develops a condition that may endanger himself/herself or others, or where material medical information has not been disclosed by the Parent/Guardian.

9. FORCE MAJEURE

- A. The Company shall not be liable for any delay, modification or cancellation of the Programme resulting from events beyond its reasonable control, including natural disasters, adverse weather, accidents, strikes, government restrictions, law and order situations or any other force majeure event.
- B. In such circumstances, the Company may modify, postpone, shorten or cancel the Programme as reasonably required.

10. PHOTOGRAPHY AND PUBLICITY

The Company may photograph or record the Participant during the Programme and use such material for educational, promotional and marketing purposes without any additional compensation.

11. LIMITATION OF LIABILITY

The Company shall exercise reasonable care in organising and coordinating the Programme but shall not be liable for any loss, theft, injury, illness, accident, delay, cancellation, acts or omissions of third-party service providers or any indirect or consequential loss, except where directly caused by its gross negligence or wilful misconduct.

12. INDEMNITY

The Parent/Guardian shall indemnify and hold harmless the Company, its partners, employees, representatives and affiliates against any claims, losses, damages, liabilities or expenses arising from the Participant's misconduct, breach of these Terms or violation of any applicable law during the Programme.

13. TERM, DISCIPLINARY ACTION AND REMOVAL FROM THE PROGRAMME

- A. These Terms shall come into effect upon acceptance by the Parent/Guardian and successful payment of the Programme Fee and shall remain in force until completion of the Programme.
- B. The Company may suspend or remove the Participant from the Programme without refund where the Participant engages in misconduct, violates these Terms or applicable laws, or where continued

participation is considered unsafe or prejudicial to the Programme or other participants.

14. PRIVACY AND COMMUNICATIONS

- A. The Parent/Guardian consents to the collection, use and processing of the personal information of the Participant and the Parent/Guardian for the administration of the Programme and related communications.
- B. The Company may communicate with the Parent/Guardian through email, telephone, SMS, WhatsApp or any other electronic mode using the contact details provided during registration.

15. GOVERNING LAW AND JURISDICTION

- A. These Terms shall be governed by and construed in accordance with the laws of India.
- B. Subject to applicable law, the courts at Bengaluru, Karnataka shall have exclusive jurisdiction over any dispute arising out of or in connection with these Terms or the Programme.

16. GENERAL PROVISIONS

- A. These Terms constitute the entire understanding between the Parties in relation to the Participant's enrolment and participation in the Programme.
- B. If any provision of these Terms is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.
- C. No waiver by the Company of any provision of these Terms shall be deemed to be a continuing waiver or a waiver of any subsequent breach.
- D. The Company reserves the right to amend these Terms from time to time, provided that such amendments shall not affect confirmed bookings unless required by law or communicated to the Parent/Guardian.